

INTA Practice Guides Report

Trademark Cancellations Guide

Albania

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks. This jurisdiction is not a member of the European Union; we have no European Union Trade Marks.
- "Cancellation" is defined by legislation as follows: The Industrial Property Law (Law No. 9947 of July 7, 2008, as amended) refers to cancellation as repeal, as distinguished from revocation (i.e., invalidation). Article 173 of the Industrial Property Law (Revocation of a Mark) provides in part: 1. The court, upon the request of the interested person, abrogates [i.e., invalidates] the registered mark, if: (a) it is registered in violation of the requirements of articles 142 and 143 of this Law [absolute grounds and relative grounds for refusal of registration], at the time when the application for registration is filed; (b) the application for registration of the mark is done in mala fide. . . 3. A mark may not be declared invalid on the ground that there is an earlier conflicting trademark if the latter does not fulfil the requirements of use set out in article 159 of this Law. . . 4. Where grounds for "declaration of invalidity of a mark exist in respect of only some of the goods or services for which that mark has been applied for or has been registered," declaration of invalidity shall cover those goods or services only. Article 174 of the Industrial Property Law (Repeal of a Mark) provides in part: 1. The registration of a trademark is repealed [i.e., cancelled] when: (a) the owner, without legitimate reasons, has not used the mark for the goods or services for which the mark was registered for an uninterrupted period of five years. However, a third party may not claim that the proprietor's rights in a trademark should be revoked where, during the interval between expiry of the five-year period and filing of the application or counterclaim, genuine use of the trademark has been started or resumed; the commencement or resumption of use within a period of three months preceding the filing of the application or counterclaim that began at the earliest on expiry of the continuous period of five years of non-use shall be disregarded where preparations for the commencement or resumption occur only after the proprietor becomes aware that the application or counterclaim may be filed; (b) in consequence of acts or inactivity of the owner, the mark has become an ordinary name in the market for the goods or services for which it was registered; (c) as a consequence of the use made by the owner or with his consent of the goods or services for which it was registered, the mark disorients the public, principally about the nature, quality or geographical origin of the goods or services.
- Cancellation actions cannot be filed online.

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the

mark is functional;the mark is against public policy or principles of morality;the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention;the mark includes a badge or emblem of particular public interest;the mark is used in a misleading and/or deceptive manner;the mark is prohibited in this jurisdiction;the application for or registration of the mark was made in bad faith.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings:there is an earlier application or registered mark;there are earlier use-based rights in an unregistered mark;the application for or registration of the mark was made in bad faith;the mark is covered by a copyright;the mark is a company name;the mark is notorious or well known (Article 6bis of the Paris Convention);the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention);the mark is a trade or business name;the mark is a domain name.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- Other than the absolute or relative grounds listed above and/or the non-use grounds listed below, there are no other grounds that may be raised in cancellation proceedings.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings.
- In relation to cancellation for non-use, "use" is defined as: Article 159 of the Industrial Property Law provides, in part:3. The use of the mark within the meaning of points 1 and 2 of this article also means its use in packaging, catalogues, brochures, manuals, advertisements, the media of communication and electronic commerce or audio-visual media, [provided that it is perceived by the public as relating to the offering or providing of goods or services designated by the mark in the Republic of Albania].4. The use of the mark within the meaning of points 1 and 2 of this article also means:(a) its use by a licensee or another person when this is permitted by its owner, or by any person who has authority to use a collective mark;(b) its use in a form differing in elements which do not alter the distinctive character of the mark in the form in which it was registered;(c) affixing of the mark to goods or to the packaging thereof in the Republic of Albania solely for export purposes.
- The definition of "use" provided above is derived from statute, regulation or administrative rule: the Industrial Property Law (Law No. 9947 of July 7, 2008, as amended).
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor.
- The time frame within which a mark must be used in order to avoid cancellation runs from:the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: an uninterrupted period of five years.
- The consequences of use being interrupted are: possible cancellation of the registration of the mark.

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a

combination of absolute, relative and non-use grounds). An application for cancellation (repeal) may also be based on multiple absolute grounds, such as being generic and/or misleading. Non-use grounds are also to be used in a cancellation (repeal) application. (See Article 174 of the Industrial Property Law.)

- The advantages of filing an action based on multiple grounds are as follows: There are more chances of success.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may be introduced at a later stage in the proceedings. The deadline for introducing additional grounds is: no later than the next hearing.

III. Forum — A. Forum

- The forum for cancellation proceedings is the same regardless of the grounds on which the proceedings are brought. Cancellation proceedings on all grounds may be brought before the following administrative body: the Chamber for Cancellation/Invalidation of the General Directorate of Industrial Property (GDIP). The decision of the Chamber may be appealed to the Board of Appeal of the GDIP. A cancellation filed at the Chamber may be brought to the Tirana District Court at any phase during the procedure already started at the Chamber. The cancellation proceeding must be brought before the Tirana District Court if there are proceedings ongoing in court for the mark in question.
- The administrative body/bodies listed above is/are not independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The following parties have legal standing to apply for cancellation, regardless of the grounds for cancellation: any person. Legal interest is not required.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may never apply jointly for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant.

V. Representation — A. Qualifications

- The applicant is required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings in the following circumstances: when the proceedings are before the court, or, when before the Chamber for Cancellation/Invalidation of the GDIP, if the applicant is not a resident of Albania.
- The representative must be domestic, i.e., with an office in the jurisdiction.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: The representative in cancellation proceedings must be an authorized representative appointed by the General Directorate of Industrial Property (GDIP).

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney must be provided to a representative by an applicant in cancellation proceedings.
- To validate the power of attorney, the following notarization/legalization requirements must be met in cancellation proceedings: For cancellation proceedings before the Chamber for Cancellation/Invalidation of the General Directorate of Industrial Property (GDIP), the power of attorney is required to have a seal/stamp or a notarized signature. For cancellation proceedings before the court, the power of attorney must be legalized by Apostille.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- There is never a deadline for bringing cancellation proceedings, regardless of the grounds for cancellation.

VI. Commencement — C. Statute of Limitations

- The following statute of limitations or acquiescence provisions will prevent cancellation, regardless of the grounds for cancellation: Article 160 of the Industrial Property Law provides, in part:1. Where the proprietor of an earlier mark ... has acquiesced, for a period of five successive years, in the use of a later mark registered in the Republic of Albania while being aware of such use, he shall no longer be entitled on the basis of the earlier mark either to apply for a declaration that the later mark is invalid or to oppose the use of the later mark in respect of the goods or services for which the later trademark has been used, unless registration of the later trademark was applied for in bad faith.2. The proprietor of the later registered mark shall not be entitled to oppose the use of the earlier mark. Article 174 of the Industrial Property Law provides, in part:3. A registration of a mark, within the meaning of letter "a" of point 1 of this article, is not repealed for the goods and services for which it was registered when:(a) it has been used by a licensee or another person when this is permitted by its owner, or by any person who has authority to use a collective mark; (b) it has been used in a form differing in elements which do not alter the distinctive character of the mark in the form in which it was registered; (c) it has been affixed to goods or to the packaging thereof in the Republic of Albania solely for export purposes;(d) it has been used for publicity and business correspondence, as set out in article 159, paragraph 3 of this Law.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: if the proceeding is before the Chamber for Cancellation/Invalidation of the General Directorate of Industrial Property (GDIP), two months; if the proceeding is before the court, one year.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: 5 to 10 days.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees; administrative costs relating to power of attorney; administrative costs relating to legalization and/or notarization.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation.
- If an application for cancellation is based on multiple grounds, no additional official fees are due.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- The following documents must be notarized in cancellation proceedings, regardless of the grounds for cancellation: all statutory documents, with the exception of authorizations issued by Albanian legal entities.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings are the same, regardless of the grounds for cancellation and are as follows: request for the suit; power of attorney; proofs supporting the claim/claims raised. According to the Albanian Code of Civil Procedure, examples of better-quality proof include official acts, official letters, material proofs, and photographs. Proofs collected during the proceedings include oral testimony, expert's opinion, etc.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- Any party may request that any other party produce documents in response to written document requests ("Document Requests").
- The general rules concerning the timing, number and scope of Document Requests are: Such requests are answered within 30 days. All documents, except those characterized as "state secret," may be requested.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, there is no procedure by which the requesting party can compel

compliance.

- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the consequences are as follows: The position of the party that fails to provide the documents requested becomes weaker.
- The grounds on which the requested party may justify its refusal to produce documents in response to Document Requests, in whole or in part, and the circumstances in which these grounds are applicable are as follows: only when the other party bases its claims exclusively upon these documents and has no other way of supporting the defense.
- Documents obtained in response to Document Requests may be used as evidence in the action.

XI. Discovery — C. Depositions

- No party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: In cases where the proofs are in another party's possession, the court, upon the request of the party that has the burden of proof, may shift it to the other party or to an institution or other involved parties.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory.
- The deadline for submitting written arguments is determined by scheduling order or ruling of the court, other judicial tribunal or administrative body and is: two months.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are available to the applicant to file written arguments. The duration of the extension is: If the proceeding is brought before the Chamber for Cancellation/Invalidation of the General Directorate of Industrial Property (GDIP), upon official notification an extension of one to two months is available. If the cancellation is brought before the court, the judge may postpone the hearing for up to one month, but the extension granted for filing the final written arguments is at maximum five days. The following number of extensions is available: one.
- Extensions of time are available to the respondent to file written arguments. The duration of the extension is: if the cancellation is before the court, no more than five days. The following number of extensions is available: one.
- Extensions do not require the consent of the adverse party.
- Extensions require the approval of the court, other judicial tribunal or administrative body.
- No official fees are required to obtain extensions.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings.
- The determination of whether oral hearings will take place is made by: the Code of Civil Procedure.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: evidence that the mark has become generic or is misleading the public.
- Evidence must be submitted to: the Chamber for Cancellation/Invalidation or the court.
- Evidence must be submitted by the following deadline: if the proceeding is brought before the Chamber for Cancellation/Invalidation, within two months from the official request for evidence; if the proceeding is brought before the court, before the judicial proceedings.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: all evidence of prior rights.
- Evidence must be submitted to: the Chamber for Cancellation/Invalidation or the court.
- Evidence must be submitted by the following deadline: the deadline assigned by the Chamber for Cancellation/Invalidation or the court.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: Non-use is difficult to prove. In these cases, the burden of proof shifts to the other party, which will have to prove use within a specific time frame.
- Evidence must be submitted to: the Chamber for Cancellation/Invalidation or the court.
- Evidence must be submitted by the following deadline: if the proceeding is brought before the Chamber for Cancellation/Invalidation, within two months from the official request for evidence; if the proceeding is brought before the court, anytime until the proceeding passes to the proof administration.

XV. Evidence — E. Applicant's Proof of Use

- The applicant must submit proof of use of the mark on which the cancellation is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time available for the applicant's submission of evidence are the same, regardless of the grounds on which the cancellation proceedings are based. Extension is possible for: submission of any new evidence that the applicant thinks is important for its case. If the proceeding is before the Chamber for Cancellation/Invalidation of the General Directorate of Industrial Property (GDIP), the extension is for a maximum of two months; if the proceeding is before the court, the extension is generally for one to five days.
- No official fees are payable to obtain an extension for submitting evidence.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: declared by the Chamber for Cancellation/Invalidation or the court.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional.
- Evidence in reply must be submitted by the following deadline: the next hearing.
- Extensions of time for the respondent's submissions are not available. However, the judge or the examiner of the Chamber for Cancellation/Invalidation may consent to an extension until the next hearing.
- Petitioner can demand that respondent provide additional particulars relating to the respondent's proffered evidence, using the following procedure: It is the right of each party to ask for additional particulars regarding the proofs. Moreover, each party may claim that certain proofs may not be considered by the court or the Chamber for Cancellation/Invalidation if they seem to be suspicious; in this case, it should give arguments based on the law.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; evidence of turnover; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site.
- In assessing whether "use has been made," sufficient use is demonstrated by: any license agreements that have been recorded with the General Directorate of Industrial Property (GDIP); any evidence that the mark has been used or published; evidence that there has been interruption of use for five years.
- The following factors are considered when determining whether a mark has been sufficiently used: the scale and frequency of use of the mark; export use.
- The respondent can demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence, using the following procedure: It is the right of each party to ask for additional particulars regarding the proofs. Moreover, each party may claim that certain proofs may not be considered by the Chamber for Cancellation/Invalidation or the court if they seem to be suspicious; in this case, it should give arguments based on the law.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: The court, other judicial tribunal or administrative body must consider and decide the matter on the merits despite such failure.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: There are no criteria yet set for establishing acquired distinctiveness.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: in cases of force majeure (owing to either natural causes or temporary governmental limitations).

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision may include a formal monetary award against the losing party, regardless of the grounds for cancellation. A decision taken by the Chamber for Cancellation/Invalidation will not include a formal monetary award, whereas if the final

decision is requested in the court, a monetary award may be included.

- Monetary awards are based on: actual losses; future losses.
- The amount of a monetary award is likely to be influenced by the following circumstances: when the amount of the monetary award required is beyond comprehension.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings, regardless of the grounds for cancellation.
- The award of attorney fees in cancellation proceedings is: discretionary.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid only between the parties to the proceeding.
- A decision ordering cancellation of a mark takes effect: If the cancellation proceeding is brought before the Chamber for Cancellation/Invalidation of the General Directorate of Industrial Property (GDIP), the decision may be appealed within one month to the Board of Appeal of the GDIP; thereafter, it may still be appealed within 30 days to the court. The decision becomes final if no appeal is filed before the deadlines. If the cancellation proceeding is brought before the court, the decision takes effect immediately when it becomes a decree absolute and no appeal has been filed. If an appeal is filed, recourse follows in the Supreme Court. The decision of the Supreme Court is final.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application based on any grounds requires the approval of the court, other judicial tribunal or administrative body, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation.
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: the withdrawing party, unless the parties have agreed to withdraw and to share the expenses.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: The decision of the Chamber for Cancellation/Invalidation of the General Directorate of Industrial Property (GDIP) may be appealed to the Board of Appeal of the GDIP within 30 days from receipt of notice.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following administrative body: the Board of Appeal of the General Directorate of Industrial Property (GDIP). Appeals can also be heard by the Appeal Court.

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal only upon request of the Board of Appeal.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: ALL (Albanian Leks) 10,000 (approximately USD 90) for filing an appeal with the Board of Appeal of the General Directorate of Industrial Property (GDIP).
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision. For Albanian applicants, specialist counsel is not required but a trademark attorney is recommended for appealing a cancellation decision. For foreign applicants, a trademark attorney is required for appealing a cancellation decision with the General Directorate of Industrial Property (GDIP).
- An appeal decision cannot include a monetary award against the losing party if the earlier decision did not include a monetary award.

XIX. Appeals — E. Scope

- An appeal consists of a complete rehearing of the matter.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: the Supreme Court.
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, if an applicant is successful in obtaining cancellation, the legal consequences of the cancellation will depend on the grounds on which the proceedings were brought (see below).
- If an applicant succeeds in obtaining cancellation on absolute grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on relative grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: The assignment is cancelled and ceases to exist.
- The consequences for past licenses if a mark is cancelled are: The license is cancelled and ceases to exist.
- The consequences for past contracts if a mark is cancelled are: The contract is cancelled and ceases to exist.

XXI. Notification to TM Office — A. Notification to TM Office

- Following a decision to cancel a mark, the Trademark Office must be formally notified of the cancellation, regardless of the grounds on which the proceedings were brought. The following party has the responsibility to notify the Office: the court. The deadline to make the notification is: 15 days, in the event that the decision is not appealed; one month, in the event that the case is appealed on recourse to the Supreme Court.
- The consequences of failing to meet the deadline to notify the Trademark Office are: Not provided in the law. The interested party can inform the General Directorate of Industrial Property (GDIP) of the final decision.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: by either of the parties to the action.
- There are no time limits for refiling following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: Article 165 of the Industrial Property Law (Law No. 9947 of July 7, 2008, as amended) provides, in part: 1. A collective mark is a mark used to distinguish goods or services of members of an association or of any other form of legal organization, created between commercial entities that produce goods, provide services or trade goods or services to others. This organization of commercial entities is the owner of the collective mark.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of collective marks.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: Article 166 of the Industrial Property Law (Law No. 9947 of July 7, 2008, as amended) provides, in part: 1. A certification mark is a mark that indicates that the goods or services for which it is used are certified by the owner of the mark regarding their origin, the material used, the way the product is made or the service is provided, their quality, [their] precision and [their] other characteristics. The owner of the certification mark shall not hold the right to use it for goods or services he places in the market. The other persons can use the certification mark with the authorization of the owner of the mark and under his control.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks.

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